

Smt. Anita Devi v. State of U.P. & Ors.

High Court of Judicature at Allahabad · Division Bench · 25 September 2014 · Criminal Misc. Writ Petition No. 16916 of 2014 · s.138 FIR not quashed; CrPC 41/41-A arrest directions; compounding under s.152/Supply Code left open.

HEADNOTE

An FIR under s.138 of the Electricity Act, 2003 that discloses a cognizable offence will not be quashed in a criminal writ. If arrest is contemplated and the offence will not entail a sentence of more than seven years, police must comply with CrPC s.41(1)(b) read with s.41-A. If the offence is compoundable, the accused may seek compounding under the Electricity Supply Code, 2005 and s.152 of the 2003 Act.

FACTUAL SUMMARY

Smt. Anita Devi filed a criminal miscellaneous writ petition in the Allahabad High Court seeking to quash an FIR dated 22 August 2014, registered as Case Crime No. 563 of 2014 under Section 138 of the Electricity Act, 2003 at Police Station Rasoolpur, District Firozabad. She had not been arrested. Counsel submitted that the alleged offence carried a maximum sentence of not more than seven years, that arrest should not be mechanical, and that the offence was compoundable.

HOLDING-UNITS

HOLDING-UNIT · EA2003::138

quashing of FIR under s.138

HOLDING

Where an FIR registered under s.138 of the Electricity Act, 2003 discloses a cognizable offence, the High Court will not quash it. If arrest is to be effectuated and the offence will not entail a sentence of more than seven years, the police must proceed in compliance with CrPC s.41(1)(b) read with s.41-A. ¶ 1

INTERPLAY · EA2003::152

compounding of s.138 offence

HOLDING

If the alleged s.138 offence is compoundable, the accused may seek compounding under the Electricity Supply Code, 2005 and s.152 of the Electricity Act, 2003. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ALLEGED S.138 OFFENCE WAS COMPOUNDABLE ON THE FACTS

The Court left compounding to the petitioner if the offence is compoundable; it did not decide eligibility under the Supply Code or s.152. ¶ 1